STANDARD OPERATING PROCEDURE	G-6120

SARPY COUNTY
SHERIFF'S OFFICE
PAPILLION * NEBRASKA
GREG LONDON
SHERIFF

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APPROVED:

GREG LONDON

CHAPTER TITLE	RESOURCES
GENERAL	N.R.S. 28-1412, 28-109, 29-1401, 71-7112

SUBJECT	CROSS REFERENCE
USE OF DEADLY FORCE OR INCIDENTS RESULTING IN DEATH OR SERIOUS BODILY INJURY	G-2100 COMPLAINT PROCEDURE G-2300 MEMBER RIGHTS AND REQUIREMENTS G-7400 PSYCHOLOGICAL SERVICES G-10410 FIELD COMMAND POST P-4810 CRIME SCENE

I. Purpose:

The purpose of this policy is to establish the guidelines for the criminal and administrative investigation of employee involved use of deadly force or incidents resulting in death or serious bodily injury.

II. Policy:

A. It is the policy of the Sarpy County Sheriff's Office that all Sheriff's Office personnel involved in the use of deadly force or incidents resulting in death or serious bodily injury, on or off duty, shall be:

1. Afforded due process during the criminal and internal affairs investigation process.

2. Temporarily provided a Sheriff's Office owned duty weapon and companion equipment as needed, should the employee(s) weapon and equipment be taken as part of the investigation, when practicable and with approval of the Sheriff or his designee.

3. Assigned a "peer support employee" to assist the employee with personal and family needs during the investigation.

4. Referred for a critical incident stress management session.

5. Placed on administrative leave and informed of his or her duty status in a timely manner.

B. It is the policy of the Sheriff's Office that all use of force incidents, on or off duty, shall be thoroughly investigated to determine if any crime was committed. The jurisdiction in which the incident occurred may determine which law enforcement agency shall conduct the criminal investigation.

1. If the incident occurs within Sarpy County, the Sarpy County Force Investigation Team (SCFIT) shall investigate the incident.

2. If the incident occurs outside of Sarpy County, the law enforcement agency with primary jurisdiction shall determine who shall conduct the investigation. The investigation shall be conducted in accordance with that agency's policies and procedures.

C. It is the policy of the Sheriff's Office that an Internal Affairs Investigation shall be initiated for all use of deadly force incidents or incidents resulting in death or serious bodily injury which take place. The Professional Standards Unit shall be responsible for conducting the internal affairs investigation, regardless of the jurisdiction of the occurrence. No deputy shall be assigned to both the criminal and internal affairs investigation of the incident.

D. In the event of an in-custody death (a death occurring while the person is being apprehended or while in custody of a law enforcement officer or detention personnel), and pursuant to Nebraska State Statute 29-1401, the investigation shall be treated as an open, ongoing matter until all evidence, reports, and other relevant materials are transferred to the prosecutor charged with the duties of investigating the incident. As such, the involved employee(s) shall not discuss the incident with anyone except an attorney, FOP representative, investigators or during a critical incident stress management session should the employee choose to participate.

III. Definitions:

A. **EMPLOYEE:** For the purpose of this policy, any individual employed by the Sarpy County Sheriff's Office that has the authority to use force including: all deputies, juvenile services employees and entry security officers.

B. **SERIOUS BODILY INJURY:** Defined as bodily injury which involves a substantial risk of death, or which involves a substantial risk of serious permanent disfigurement, or protracted loss or impairment of any part or organ of the body (NRS 28-109).

IV. Procedure:

A. **Initial On-Scene Response Procedures-Employee Responsibilities:** When an employee uses deadly force or the employee's actions result in death or serious bodily injury, the employee shall:

1. Ensure threats to self and others are over.

2. If possible, separate all suspects and witnesses, handcuffing when appropriate.

3. Request a supervisor and additional units. Immediately advise Communications and the supervisor of the status of the scene (e.g. signal 88 “situation secure” or otherwise), any injuries sustained by the employee or others, and any information regarding fleeing suspects.

4. Coordinate the arrival of responding units. Establish a perimeter for scene preservation and, if appropriate, for the search of additional suspects.

5. Administer basic first aid as necessary, pending the status of the scene (secure) and Emergency Medical Services.

6. Preserve the scene. If tactically safe, leave all evidence, including firearms and other weapons, where it is located until the arrival of investigators (see P-4810 Crime Scene).

   a) If the scene involves a Sheriff’s Office vehicle, the vehicle shall be processed as part of the scene and secured as evidence. This shall include any in-car video that may contain potential evidence.

   b) If evidence must be moved prior to the arrival of investigators, the employee shall mark or otherwise designate the location from which it was moved. Document the location and movement of evidence with photographs and video recording from a body camera.

7. Secure weapons and equipment. Any involved personnel shall secure his or her weapon, if used, companion equipment (e.g., ammunition, magazines, etc.) and vehicle until the equipment can be turned over to an investigator. If an employee’s weapon or equipment was dropped during the incident, the weapon or equipment shall be secured where it rests and preserved and processed as part of the scene.

8. Attempt to identify and document all persons present at the scene.

B. **Initial On-Scene Response Procedures-Supervisor/Command Officer Responsibilities:** Upon arriving at the scene, the initial supervisor or command officer shall:

1. Ensure the safety and security of those involved has been adequately addressed and Emergency Medical Service (EMS) is en-route.

2. Establish a crime scene perimeter. An inner and outer crime scene perimeter shall be established using Sheriff's Office personnel or other law enforcement personnel, crime scene tape, cruisers, etc. The supervisor shall notify the ADC or command officer (if on duty). The On-Call Investigator shall also be requested.

3. Determine the need for additional personnel to assist with road patrol functions during the investigation.

4. Obtain preliminary information from the involved employee(s) on what took place.

a) Utilize the Public Statement Safety Card, Employees are requested to answer questions regarding public safety and security of the scene.

5. Establish a command post: The command post shall be established outside of the crime scene to facilitate supervision of the incident (see G-10410 Field Command Post).

6. If necessary, the supervisor shall assign a deputy to accompany any injured party(s) to the hospital.

7. Contact Sarpy County Communications and request the SCFIT be activated.

8. Contact Sarpy County Communications and request the Douglas County Crime lab respond to the scene.

9. The supervisor shall assign a deputy to gather the necessary information to complete an incident report listing the involved employee(s) as the victim.

10. Determine the location of the involved employee(s) weapon(s). If a weapon was dropped during the incident, maintain it where it rests until investigators arrive if possible. If the weapon was holstered, instruct deputy to retain weapon holstered until instructed otherwise.

11. Determine location of any additional potential evidence and secure it (e.g., in-car video, vehicles, etc.).

12. Determine the most suitable location for involved employee(s) either at scene or another secure location and have the employee(s) transported to that location.

13. Assign a deputy to initiate a Crime Scene Entry Log: see P-4810 Crime Scene. Access to the scene shall be limited to essential personnel. Anyone entering the scene shall be required to complete an information report.

14. Ensure notification of the on-duty watch commander or ADC. The ADC shall notify:

a) The involved employee's division commander.
b) The Investigations Division Commander.
c) The Professional Standards Unit Commander.
d) The Chief Deputy.
e) The Sheriff.

15. If injury has occurred to the involved employee(s) determine who will notify the employee(s) family. Notification shall be done as soon as possible.

16. Establish a location for members of the media. The media location shall be established outside the crime scene and away from the command post.

17. Have involved employee(s) select a Peer Support Employee (PSE). The employee shall select a Sheriff's Office employee or department chaplain to accompany and assist him or her (see section IV, J, for additional information on PSE's).

18. Brief SCFIT and turn scene over to team.

C. **SCFIT Responsibilities at the Scene:** The Sarpy County Force Investigation Team shall conduct the criminal investigation. Members of SCFIT shall immediately respond to the scene to conduct a complete and thorough investigation of the incident. Investigators shall conduct the investigation in accordance with the SCFIT Manual.

D. **Internal Affairs Investigation:** The Professional Standards Unit shall conduct an Internal Affairs (IA) investigation of the incident separate from a criminal or grand jury investigation. Established policies for IA investigations shall be followed (see G-2100 Complaint Procedure). The IA investigation shall determine whether:

1. Sheriff's Office policies and procedures were followed.

2. Identify possible policy failures that may have existed at the time of the incident.

E. **Peer Support Employee:** The involved employee(s) may select an uninvolved employee or Department Chaplain to act as a Peer Support Employee (PSE).

1. The PSE may accompany the involved employee from the scene to the SCSO or other designated facility and shall assist him or her with personal needs.

2. The PSE is prohibited from discussing the incident with the involved employee.

a) This prohibition protects the involved employee and the PSE, as any statements made by the involved employee to the PSE are not protected and could be used in criminal, civil and internal affairs investigations.

b) The PSE shall not be present during any criminal interviews. The PSE may be present during the internal affairs interview if acting as the involved employee(s) FOP representative.

3. In addition, the PSE may obtain meals, make telephone calls, make child care arrangements, and complete other tasks as requested.

4. The PSE may facilitate notification to an FOP representative and/or legal representation for the involved employee.

F. Assignment of Employee(s) During Investigation:

1. The employee involved in a use of deadly force incident or incident causing death or serious injury, shall be placed on paid administrative leave pending a preliminary review by the Sheriff and/or Chief Deputy.

2. An involved employee(s) shall make themselves available for administrative requests from the department.

3. An involved employee(s) shall be returned to duty at the direction of the Sheriff or his designee.

4. An involved employee(s) shall not contact the victim or the victim's family, visit the morgue, autopsy, or mortuary without permission from the Sheriff.

5. An involved employee(s) shall not disseminate any information regarding the ongoing investigation outside of legal counsel or FOP representative.

G. Temporary Duty Firearm and Equipment:

1. If the involved employee(s) is a deputy, the Training Sergeant upon approval of the Sheriff, shall make arrangements to acquire a replacement duty firearm and any required replacement equipment, if necessary. The temporary firearm shall be loaned to the involved deputy until release of the deputy's duty firearm and other equipment in the event the deputy's weapon is taken.

2. The Training Sergeant shall ensure the involved deputy has qualified with the temporary duty firearm.

H. Critical Incident Stress Management (CISM):

1. The Administrative Commander or his or her designee shall schedule a critical incident stress management session with the State of Nebraska Critical Incident Team.

2. Attendance at a CISM session is encouraged for all employees involved in a death or serious injury incident resulting from a use of force. The employee may choose a one-on-one session or a group session with other personnel involved in the incident.

3. The CISM shall be scheduled in a timely manner.

4. All discussion and information related to the CISM shall be considered confidential and shall not be relayed back to the Sheriff's Office or utilized for any investigation pursuant to Nebraska State Statute 71-7112.

5. The employee shall be required to meet with a licensed psychologist. For additional information, see G-7400 Psychological Services.

I. Press Release:

1. Until authorized by the Sheriff or Chief Deputy, the name(s) of the involved personnel shall not be released by any Sheriff's Office personnel.

2. All press releases made regarding the incident shall be reviewed by the Sheriff or his designee prior to dissemination.

J. Report Requirements: Involved employees will not complete a report. Involved employees will be interviewed by SCFIT when appropriate.

K. Review Process: See G-6110 Use of Force Reporting Requirements.